

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

HMM Co., LTD. F/K/A HYUNDAI MERCHANT MARINE CO.,
LTD., *Respondent*.

DOCKET NO. 24-23

Served: July 18, 2025

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

ORDER PURSUANT TO FEDERAL RULE OF EVIDENCE 502(D)

On July 15, 2025, the Parties filed a Joint Motion for Entry of Rule 502(d) Order. Dkt. 32. This motion seeks entry of an order pursuant to Federal Rule of Evidence 502(d), which provides that a court may order that attorney-client privilege and work-product protection are not waived by disclosure connected with the litigation pending before the court, without regard to the considerations in Federal Rule of Evidence 502(b), which are ordinarily applied to determine whether an inadvertent disclosure of protected material constitutes a waiver. The rule provides that such an order is enforceable against non-parties in any state or federal proceeding.

Commission Rule 204 provides that the “presiding officer may consider the Federal Rules of Evidence (FRE) as guidance.” 46 C.F.R. § 502.204(a). While the FRE are not strictly applicable in Commission proceedings, the need to minimize the time and cost of discovery is as relevant here as in a case in federal court, and the Commission has routinely entered confidentiality orders – including protections for inadvertently disclosed information and procedures and timelines for “clawing back” such information. *See, e.g., MSRF, Inc. v. HMM Co., Ltd.*, Docket No. 22-20, Joint Motion for Entry of Confidentiality Stipulation and Proposed Protective Order (Dec. 16, 2022) and Order Entering Confidentiality Stipulation and Protective Order (ALJ Jan. 4, 2023).

In support of their motion, the parties state that they have entered into a protocol for the production and handling of electronically stored information (ESI) and that their ESI Protocol requires them to seek a Rule 502(d) order regarding the inadvertent production of privileged materials. I note that the parties’ proposed order does not include deadlines or procedures for clawing back inadvertently disclosed privileged information, or for challenging any such clawback (although this may be included in their ESI Protocol, which the parties have not filed). Nevertheless, I find that the proposed order is likely to promote efficient discovery and so the motion is **GRANTED**.

IT IS HEREBY ORDERED:

1. The production of privileged or work-product protected documents, electronically stored information (“ESI”) or information, whether inadvertent or otherwise, is not a waiver of the privilege or protection from discovery in this case or in any other federal or state proceeding. This Order shall be interpreted to provide the maximum protection allowed by Federal Rule of Evidence 502(d).

2. Nothing contained herein is intended to or shall serve to limit a party’s right to conduct a review of documents, ESI, or information (including metadata) for relevance, responsiveness, and/or segregation of privileged and/or protected information before production.

3. The provisions of Federal Rule of Evidence 502(b) do not apply.

SO ORDERED.

ALEX
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ALEX CHINTELLA
Date: 2025.07.18
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Alex M. Chintella
Administrative Law Judge